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# SOLE REPRESENTATIVE OF AN OVERSEAS BUSINESS VISA



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## SOLE REPRESENTATIVE OF AN OVERSEAS BUSINESS VISA

This route is now closed to new main applicants. If you already have permission to stay as a Sole Representative of an Overseas Business then you may apply for an extension of stay or for indefinite leave to remain. If you are a senior manager or specialist employee wishing to set up a branch of an overseas business in the UK for the first time then you may qualify for a **Global Business Mobility – UK Expansion Worker Visa** (<https://immigrationbarrister.co.uk/personal-immigration/global-business-mobility-visas/uk-expansion-worker-visa/>) instead. If you are interested in setting up a new business in the UK, or you own an existing UK business, you may also be eligible for a **Skilled Worker visa** via self-sponsorship (<https://immigrationbarrister.co.uk/personal-immigration/business-visas/self-sponsorship-skilled-worker-visa/>), that is by being sponsored by your own UK company. The Sole Representative route is still open to dependent partners and children of Sole Representatives.

The Sole Representative of an Overseas Business visa category is for businesses that wish to send a senior employee to the UK in order to establish a commercial presence for the company in the UK.

### What is a Sole Representative of an Overseas Business visa?

The Sole Representative of an Overseas Business visa allows a senior employee of an overseas business to come to the UK to set up and run a UK branch or wholly-owned subsidiary of the overseas parent company. Indefinite leave to remain (ILR) can be ac

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after 5 years in the Representative of an Overseas Business visa category.

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of an Overseas Business Visa

Representative-of-an-Overseas-Business-Visa-Brochure-Richmond-

Brochure

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## Requirements for a Sole Representative of an Overseas Business visa

In order to qualify for a Sole Representative of an Overseas Business visa you will need to satisfy UK Visas and Immigration that your overseas company:

- Is an active and trading overseas business;
- Has its headquarters and principal place of business outside the United Kingdom;
- Has no other active branch, subsidiary or representative in the UK;
- Intends to establish a registered branch or wholly-owned subsidiary in the UK that will actively trade in the same business activity as the overseas business;
- The overseas business will not be established or the sole representative appointed mainly for the purpose of facilitating the entry or stay of the sole representative;
- Intends to maintain the centre of its operations overseas.

You will also need to demonstrate that you:

- Are a genuine Representative of an Overseas Business;
- Are an existing senior employee of the overseas business;
- Have been recruited and taken on as an employee of the overseas business outside of the UK;
- Have the skills, experience and knowledge of the business necessary to undertake the role of sole representative of the overseas business in the UK;
- Have full authority to negotiate and take operational decisions on behalf of the overseas business;
- Intend to work full-time as a representative of the overseas business;
- Do not intend to engage in business of your own or work for any other business;
- Do not have a majority stake in, or otherwise own or control, a majority of the overseas business, whether that ownership or control is by means of a shareholding, partnership agreement, sole proprietorship or any other arrangement;
- Can show English language ability to at least CEFR Level A1 (speaking and listening);
- Can show you can adequately maintain and accommodate yourself and your dependants in the UK, without recourse to public funds.

The exact requirements that you will need to satisfy will vary depending on your circumstances. You may want to speak to an immigration lawyer for expert advice.

To discuss your Sole Representative of an Overseas Business visa application with one of our immigration barristers, contact our UK Representative of an Overseas Business visa lawyers on 0203 617 9173 or complete our enquiry form below.

## Is your business eligible to establish a UK branch or subsidiary?

For an employee to qualify for a UK Overseas Business Representative visa, the parent company must be an active and trading overseas business. The overseas parent company must have, and intend to continue to have, its headquarters and principal place of business outside the UK. If the parent company already has a branch, subsidiary or other representative in the UK then the business will be excluded. Even where there is no representative in the UK, the business will be disqualified if the employee setting up the branch or subsidiary in the UK would involve the business effectively moving the centre of its business operations to the UK. The Home Office will also need to be satisfied that the branch or wholly-owned subsidiary in the UK intends to actively trade in the same type of business as the overseas business and is not being established solely for the purpose of facilitating the entry and stay of the sole representative.

## Choosing a Sole Representative of an Overseas Business visa candidate

The Sole Representative visa applicant must genuinely be an existing senior employee of the overseas business who was recruited and taken on as an employee of the overseas business outside of the UK. They will genuinely have the skills, experience and knowledge of the overseas business necessary to undertake the role of sole representative of the overseas business in the UK. The Sole Representative visa candidate will have full authority to negotiate and take operational decisions on behalf of the overseas business and genuinely intend to be employed full-time as a representative of the overseas business. They must genuinely intend to not engage in business of their own or represent any other business's interest in the United Kingdom.

## Can Sole Representatives be shareholders?

The Immigration Rules require that an applicant for a Sole Representative visa must not have a majority stake in, or otherwise own or control, the overseas business, whether that ownership or control is by means of a shareholding, partnership agreement, sole proprietorship or any other arrangement.

This means that applicants can be shareholders, but they must not own more than 50% of the available shares in the business at the point of application. Existing majority shareholders may qualify for a Sole Representative visa if they reduce their shareholding prior to applying. However, applicants should note that the Home Office will look at the company share distribution in both the current and the previous year.

Applicants (both shareholders and non-shareholders) should also note that the requirements of the route go beyond ownership to cover control. Regardless of the stake in ownership, applicants must not control the overseas business by means of any other arrangement.

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For further information regarding the ownership and control requirement for a Sole Representative visa, contact our immigration lawyers in London.

- Choosing a sole representative of overseas business visa candidate (<https://immigrationbarrister.co.uk/choosing-a-sole-representative-of-overseas-business-visa-candidate/>)
- Is your business eligible to establish a UK branch or subsidiary? (<https://immigrationbarrister.co.uk/is-your-business-eligible-to-establish-a-uk-branch-or-subsidiary/>)
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## Terms of employment of an Overseas Business Sole Representative

A Sole Representative must have authority to set up and operate a UK branch or subsidiary and take the majority of key operational business decisions locally on behalf of the company. Sole Representative of an Overseas Business visa holders are also required to work full-time. Sole Representative visa holders are not required to earn any particular minimum level of salary or receive any particular benefits. However, their remuneration package should be appropriate for a senior employee in the company.

## What is the centre of operations test for a Sole Representative of an Overseas Business visa?

For a parent company to satisfy the requirements of the UK's Representative of an Overseas Business visa it must intend to keep its main centre of business operations abroad. The Home Office will refuse an application for a Sole Representative visa if it is clear that the intention is to move the main centre of business to the UK and effectively cease trading outside the UK.

An intention to move the main centre of business to the UK may be inferred if, for example, the visa applicant is a major shareholder, if they are the driving force behind the parent company, if no or few senior employees will remain abroad or if the company's success seems linked to the applicant's specific talents and performance. You can speak to our immigration lawyers for expert advice.

## Conditions of stay for a Sole Representative

As with all categories of the immigration rules, a Sole Representative of an Overseas Business visa holder must comply with certain conditions of stay. The most important condition is that Sole Representatives are only able to be employed by the company that sent them to the UK. It is not possible to have any other business interests, or undertake any other part-time or consulting work in the UK on the side of employment for the business.

## Dependents of Sole Representatives

A Sole Representative of an Overseas Business may bring, or be joined by, their spouse, civil partner, unmarried or same-sex partner and any children under the age of 18. Unfortunately, as with most other categories of the Immigration Rules, Sole Representatives cannot bring their parents, siblings or other extended family members.

Where a spouse, civil partner, unmarried or same-sex partner is accompanying or joining a Sole Representative, that partner must not themselves have a majority stake in, or otherwise own or control, the overseas business. This rule applies whether the ownership or control is by means of a shareholding, partnership agreement, sole proprietorship or any other arrangement.

- Sole Representative Visa: The Centre of Operations Test  
(<https://immigrationbarrister.co.uk/sole-representative-visa-the-centre-of-operations-test/>)
- What can I do (and not do) as a sole representative?  
(<https://immigrationbarrister.co.uk/what-can-i-do-and-not-do-as-a-sole-representative/>)
- Terms of employment as a sole representative  
(<https://immigrationbarrister.co.uk/terms-of-employment-as-a-sole-representative/>)
- Can a sole representative bring family members to the UK?  
(<https://immigrationbarrister.co.uk/can-a-sole-representative-bring-family-members-to-the-uk/>)

## When should you apply for a UK Sole Representative visa?

You should make an application for a UK Sole Representative visa no more than 3 months before you intend to travel.

## How much does a Sole Representative of an Overseas Business visa cost?

The Home Office application fee for a Representative of an Overseas Business visa is currently £610.

## How long will it take for a UK Representative of an Overseas Business visa application to be decided?

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Most Sole Representative visa applications are decided within 3 weeks. Many visa application centres outside the UK also offer a priority service which allows Sole Representative of an Overseas Business visa applicants to receive a decision on their applications for entry clearance within 5 working days.

## Extension of stay as a Sole Representative of an Overseas Business

If your application for a Sole Representative visa is approved, you will be given permission to enter and remain in the UK for up to 3 years initially. Beyond this, you will need to submit a further application for leave to remain, which would be valid for 2 years.

In order to qualify for an extension of stay as a Representative of an Overseas Business, you will need to still be working for the same employer as when your initial visa was issued and have established the parent company's first presence in the UK. The employer's headquarters and principal place of business must still be outside the UK. You will need to show that you have generated business (principally with UK firms) on behalf of your employer since you were granted the visa and that you are in receipt of a salary from your employer. Advice from an immigration lawyer will ensure that your extension application (<https://immigrationbarrister.co.uk/how-to-extend-your-sole-representative-of-an-overseas-business-visa/>) is professionally presented and technically correct.

## Settlement in the UK as a Sole Representative visa holder

After five years in the UK as a Sole Representative of an Overseas Business, you may be eligible to apply for settlement. In addition to continuing to meet the requirements for an extension of stay, you will also need to show that you have spent the last 5 years before the date of application in the UK with permission as a Representative of an Overseas Business, you have spent a continuous period of five years in the UK and you have not been absent from the UK for more than 180 days in any of the five years prior to the date of application. Unless aged 65 or over, you will also need to have English language ability on the Common European Framework of Reference for Languages in speaking and listening to at least level B1 and meet the Knowledge of Life in the UK requirement. Your employer will also need to confirm that they still require you to work for them, and that you have been, and will continue to be, paid the appropriate salary, and that you will be required for the foreseeable future.

On 6 October 2021, additional requirements for ILR as a Sole Representative of an Overseas Business (<https://immigrationbarrister.co.uk/new-requirements-for-sole-representative-visa-ilr/>) were introduced. As a sole representative applying for settlement you must now additionally show that throughout the 5-year period before the date of your ILR application:

- The overseas business that you represent has been active and trading with its headquarters and principal place of business remaining outside the UK; <https://www.google.co.uk>
- You have been employed and worked full time for the overseas business you represent or for that business's UK branch or subsidiary; <https://www.google.co.uk>
- You have not undertaken work for any other business or engaged in business of your own;
- You have not had a majority stake in, or otherwise owned or controlled a majority of the overseas business you represent, by means of a shareholding, partnership agreement, sole proprietorship or any other arrangement;
- You have established and then supervised the registered a branch or wholly owned subsidiary of the overseas business you represent in the UK, where that branch or subsidiary was actively trading in the same type of business as the overseas business.

Additionally, you will need to provide various specified documents in support of your ILR application. You may wish to speak with an immigration lawyer for expert advice.

## How our immigration barristers can help

The Immigration Rules (<https://www.gov.uk/guidance/immigration-rules>) contain strict requirements in terms of the documents that must be provided in support of a Sole Representative of an Overseas Business visa application. It can be helpful to get advice from an immigration lawyer in order to ensure that your application is professionally presented and technically correct.

Our business immigration barristers have experience in assisting all types of companies and partnerships to secure Sole Representative visas for their employees. Whether you are a small business or a large multinational looking to expand into the UK, our barristers are experts in the immigration options available and will guide you through the complex Home Office rules and policies.

We pride ourselves on being approachable and proactive in understanding and meeting our clients' needs. We are a highly driven team, dedicated to providing clear and reliable immigration advice to businesses as part of a professional and friendly service.

## WE CAN ALSO ASSIST WITH

**Drafting of business plans for Sole Representative of Overseas Business visa applications**



**Applications for extension of stay as a Sole Representative of an Overseas Business**



**Applications for settlement as a Sole Representative of Overseas Business**



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Sponsor Licence applications



Intra-company Transfer visa applications



Business Visit visa applications



## WHAT CAN WE HELP YOU WITH?

To discuss your Sole Representative of an Overseas Business visa application with one of our business immigration barristers, contact our UK Sole Representative visa team on 0203 617 9173 or complete our enquiry form.

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